

HOUSE BILL No. 1087

DIGEST OF INTRODUCED BILL

Citations Affected: IC 12-21-5-10; IC 20-34-4.5.

Synopsis: Overdose reversal medication. Provides that, subject to available funding, the division of mental health and addiction may develop an application to provide funds to a school corporation or school maintained by a school corporation to obtain a federal Food and Drug Administration approved opioid overdose reversal medication. Provides that the state health commissioner shall issue a statewide standing order, prescription, or protocol for a federal Food and Drug Administration approved opioid overdose reversal medication for each public school or school corporation.

Effective: July 1, 2026.

Andrade, Bascom, Pfaff

January 5, 2026, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1087

A BILL FOR AN ACT to amend the Indiana Code concerning human services.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 12-21-5-10 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 10. Subject to available funding, the division may**
- 4 **develop an application to provide funds to a school maintained by**
- 5 **a school corporation or a school corporation on behalf of a school**
- 6 **to obtain a federal Food and Drug Administration approved opioid**
- 7 **overdose reversal medication.**
- 8 SECTION 2. IC 20-34-4.5-1, AS AMENDED BY P.L.164-2023,
- 9 SECTION 55, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 10 JULY 1, 2026]: Sec. 1. (a) A school or a school corporation may:
- 11 (1) fill a prescription or statewide standing order for an
- 12 emergency medication; ~~and~~
- 13 (2) store the emergency medication:
- 14 (A) if the prescription or statewide standing order is filled by
- 15 a school, in the school; or
- 16 (B) if the prescription or statewide standing order is filled by
- 17 a school corporation, in a school in the school corporation;



1 **and**

2 **(3) work in cooperation with an opioid overdose prevention**
 3 **organization to carry out the purposes of this chapter;**

4 if a health care provider who is licensed in Indiana and whose scope of
 5 practice includes the prescribing of medication writes the prescription
 6 or the state health commissioner issues a statewide standing order for
 7 the emergency medication for the school or school corporation.

8 (b) The school shall store the emergency medication in a safe
 9 location in which only school employees have access.

10 SECTION 3. IC 20-34-4.5-3, AS AMENDED BY P.L.164-2023,
 11 SECTION 56, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 12 JULY 1, 2026]: Sec. 3. (a) A health care provider who is licensed in
 13 Indiana and whose scope of practice includes the prescribing of
 14 medication may:

15 (1) write; or

16 (2) transmit in an electronic format for an electronically
 17 transmitted prescription;

18 a prescription, drug order, or protocol for an emergency medication for
 19 a school or school corporation.

20 (b) **Except as provided in subsection (d),** the state health
 21 commissioner or the state health commissioner's designee who is a
 22 licensed prescriber may issue a statewide standing order, prescription,
 23 or protocol for emergency stock medication for schools or school
 24 corporations.

25 (c) A pharmacist licensed under IC 25-26 may dispense a valid
 26 prescription, drug order, standing order, or protocol for an emergency
 27 medication issued in the name of a school or school corporation.

28 (d) **The state health commissioner or the state health**
 29 **commissioner's designee who is a licensed prescriber shall issue a**
 30 **statewide standing order, prescription, or protocol for a federal**
 31 **Food and Drug Administration approved opioid overdose reversal**
 32 **medication, including nasal spray, for each:**

33 (1) school; or

34 (2) school corporation on behalf of each school.

35 **The standing order, prescription, or protocol shall provide at least**
 36 **two (2) individual doses of a federal Food and Drug Administration**
 37 **approved opioid overdose reversal medication per school.**

